

Certificate of Expungement for Military Eligibility Acknowledgement

Please include this form with your request:

- a. Petitioner has been convicted of a Class 3 or Class 4 Felony, as defined by 720 ILCS 5/2-7

☒

Yes

☐

No

If yes, then proceed to next question. If the answer is no, then you do not qualify for certificate of expungement for military. **You must apply for Executive Clemency.**

- b. Have you been convicted of any of the following crimes:

- A sex offense described in Article 111 or Section 12-13, 12-14, 12-14.1, 12-15, or 12-16 of the Criminal Code of 1961;
- Aggravated assault; aggravated battery; domestic battery; aggravated domestic battery; violation of an order of protection; an offense under the Criminal code of 1961 involving a firearm;
- Any crime defined as a crime of violence under Section 2 of the Crime Victims Compensation Act

If you answered yes to any of the above crimes; you **DO NOT** qualify for a Certificate of Expungement for Military. You will have to seek relief through the Executive Clemency process.

If you answered **no** to all of the above crimes, then proceed to the following question.

- d. If the Prisoner Review Board found it necessary to request petitioner to attend a public hearing, please mark which location would be the option:

☐

Springfield

☒

Chicago

☐

Next Available Hearing date

Please initial the following two statements that you have read them and understand:

_____ The decision to issue or refrain from issuing a certificate of expungement for military shall be at the Prisoner Review Board's sole discretion, and shall not give rise to any cause of action against either the Prisoner Review Board or its members.

_____ The Prisoner Review Board may only authorize the expungement of Class 3 and Class 4 felony convictions of the petitioner from one information or indictment . A petitioner may only receive one certificate of expungement for military under this provision for life.

Wherefore, the Petitioner prays that the Board issues a Certificate of Expungement for Military that recommends the court order the expungement of all official records of the arresting authority, the circuit clerk and Illinois State Police concerning the arrest and conviction for the Class 3 or Class 4 Felony that relief is being sought.

Alexandrina Katherine Montgomery Reyes

(Printed Name of Petitioner)

(Signature of Petitioner)

(Date)

(Printed name of Witness/Attorney)

(Signature of Witness/Attorney)

(Date)

CERTIFICATE OF EXPUNGEMENT FOR MILITARY

Before the Illinois Prisoner Review Board:

The Certificate for Expungement for Military Eligibility Acknowledgement form must be completed prior to filling out the application to determine eligibility. The Acknowledgement sheet must be included with your petition.

The undersigned petitioner prays for a Certificate of Expungement for Military and in support thereof states as follows:

1. Required Information:

Full Name: Alexandrina Katherine Montgomery Reyes
First Middle Last
Address: 12875 West Example Meadows Boulevard, Apartment 204
Number Street Apt./Unit #
Springfield IL 62702-1234
City State Zip Code
Telephone Number (include area code): 217-555-0198
Date of Birth: 11/23/1988 Place of Birth: Springfield, Illinois
Social Security Number: 000-00-0000
State Prisoner Number (if applicable):
Name Convicted Under and any Aliases: Alexandrina Katherine Montgomery

Please state your discharge status and date of discharge, and **attach a copy of your DD-214**. Honorable; 09/30/2021; along with proof thereof a tour of duty.

Have you ever petitioned for a Certificate of Expungement, Certificate of Sealing or Executive Clemency with the Prisoner Review Board before?

☒ Yes ☐ No

If yes, please state the month and year your petition was considered.

April 2020 - denied

If yes, when and docket number? 2020-EXAMPLE-41

Have you ever petitioned for sealing and/or expungement through the Circuit Clerk's office?

☒ Yes ☐ No

If yes, when and what was the outcome? May 2021 - denied

2. Conviction for Which a Certificate of Expungement for Military is Sought:

For each conviction please provide the following information:

Offense: Theft - Class 4 felony

Case Number: 2013-CF-00987

Date of Arrest: 02/18/2013

County of Conviction: Sangamon

☒ Plea ☐ Bench ☐ Trial ☐ Jury Trial

Sentencing Judge: Taylor Example

Date Sentenced: 07/15/2013

Sentenced: 24 months probation; completed
(Includes probation, any time served, an conditional discharge)

Time Served: No incarceration

Date of Discharge: 07/15/2015

If you appealed your conviction or sentence, provide the status of any pending appeals, including the date of decisions(s) by the Court:
No appeal was filed.

Provide a complete and detailed account of the offense(s) for which you seek sealing. Provide your own version of the factual circumstances of the offense, including the date and location. *Add typewritten additional pages if necessary.*

On February 18, 2013, in Springfield, I took store merchandise without paying and was
arrested. I pleaded guilty to Class 4 felony theft on July 15, 2013. I received twenty-four
months of probation, completed the sentence on July 15, 2015, and paid the restitution
ordered by the court. No other conviction is part of this application. I acknowledge my
responsibility for the conduct and provide this complete statement in my own words for the
diagnostic fixture.

3. Non-Conviction Arrest(s):

For each incident for which you were arrested, taken into custody, or charged by any law enforcement agency, except for traffic violations, provide the following information:

Case Number: 2012-CM-00456

Offense Charged: Retail theft

Date of Arrest: 04/02/2012

County of Arrest: Sangamon

Disposition: Dismissed 06/15/2012
(Includes SOL, nolle pros, nonsuit, section 10 or 410 probation, FNPC, supervision)

Date probation or supervision terminated (if applicable): _____

Attach a copy of your police record (rap sheet).

4. Personal Life History:

Write a **typewritten** detailed narrative biography that includes date and place of birth, educational and employment history, marital status, names and ages of children, place of residency and length at each listed, occupation pursued in each location of residency, substance abuse and mental health information, military record, charitable and community activities. You may also include information on degrees or diplomas earned or anticipated, awards of commendations at school or work, counseling or rehabilitation programs you have attended or completed, military awards, civil or occupational licenses or certifications, and life changing events. You may attach any documents that demonstrate or reflect your achievements.

5. Required Supported Documents:

Attach materials that support the claims made in this petition, when applicable. These include:

- a. **DD-214 and proof thereof a tour of duty**
- b. **Education, provide proof of diploma or transcripts, whether a High School diploma, GED or College;**
- b. **Counseling Programs, provide proof of completion of counseling such as Anger Management, Drug and/or Alcohol, etc.**

6. Reason(s) for Seeking Certificate of Expungement for Military:

State your reasons for seeking a Certificate of Expungement for Military, including opportunities that have been denied because of your criminal record.

7. Awards/Recognitions:

Attach any additional materials that support the claims made in this petition. These include

- Awards
- Certificates
- Volunteering
- Church, charitable or community activities
- Letters of Recommendation
- Character Letters

8. Certification and Personal Oath:

The following statement must be signed and sworn before a Notary Public:

I declare under perjury that all of the assertions made in this petition are complete, truthful and accurate.

Respectfully submitted this _____ day of _____, _____.
(Month) (Year)

(Signature of Petitioner)

Signed and sworn before me this _____ day of _____, _____.
(Month) (Year)

(Notary Public)

9. Hearing Information:

All Certificate of Expungement for Military applications will be reviewed by the members of the Prisoner Review Board and if required, the board may ask the petitioner to appear in person before them at a scheduled date, time and location (Springfield or Chicago). Personal presentations at the hearing are limited and no more than two people may speak during the presentation. Otherwise, the board will make a final recommendation on each application and will notify the petitioner via mail.

10. Filing and Mailing the Petition:

1. Deliver or mail the original petition:

Illinois Prisoner Review Board
1001 North Walnut Street
Springfield, IL 62702

Within the completed petition to the Prisoner Review Board, include proof that the current state's attorney's office was sent a copy of the petition. You may do this by affidavit with a notarized signature or by including a registered or certified mail receipt.

This form must be typewritten. The Prisoner Review Board needs original signatures and they need to be notarized. No faxes will be accepted.

Please utilize the guidelines to ensure that your petition contains all necessary documentation to be deemed complete.

Participant personal history and reasons

Name: Alexandrina Katherine Montgomery Reyes | Case: 2013-CF-00987

I was born on November 23, 1988 in Springfield, Illinois. I completed high school in 2006 and a shipping and logistics certificate in 2018. I lived in Springfield from birth through 2010, worked in retail, and returned in 2012 after two years in Peoria working in food service. I have worked in warehouse shipping in Springfield since 2016. I am unmarried and have no children or child-support obligation. I completed financial counseling in 2017 and have no substance-abuse or mental-health treatment history to report. I volunteer at a food pantry and neighborhood cleanup events. My employers recognized my attendance in 2019 and 2023. Supporting records and recommendation letters must be obtained by the participant; this diagnostic narrative does not create them. I served in the United States Army from 2017 to 2021, completed a tour of duty and received an honorable discharge on September 30, 2021. My DD-214 and tour documentation must accompany the application.

Reasons for seeking the certificate:

I seek a certificate because my conviction has limited my work and housing opportunities. I was denied an apartment application and a supervisory job after background checks. I ask the Board to consider completion of my sentence, stable employment, counseling and community service. I understand relief is discretionary. I want an opportunity to move forward while remaining truthful about my history.

Certificate application: limits and eligibility

This is the Illinois Prisoner Review Board Certificate of Expungement for Military application stage. The Board decides whether to issue a certificate; the certificate is not itself an order sealing or expunging records. A separate circuit-court petition and issued certificate are required at stage 2. Do not send the statewide court Request as a substitute for this Board application.

Read and complete the Eligibility Acknowledgement first, include it with the application, and personally initial its two statements. The Board may authorize only Class 3 and Class 4 felony convictions from one information or indictment. Only one certificate under the applicable provision may be received during a lifetime. The Board has sole discretion; generation of these forms promises no result.

This application is military-specific. Confirm the military eligibility basis, Class 3 or 4 felony requirement, service and discharge facts, DD-214 and proof of a tour of duty. Read the acknowledgement's listed sex, assault/battery, domestic violence, protection-order, firearm and crime-of-violence exclusions. Do not use this application for general nonmilitary expungement; that application vehicle is unverified and no packet is generated for it.

The adopted route calls for legal help at the discretionary Board stage and for any advocacy or Board hearing. The application may be prepared from your own answers, but a template cannot make the rehabilitation case for you. For referral, contact the Office of the State Appellate Defender, Expungement Unit, 866-787-1776. Stop self-representation if the court stage is contested or an objection or contested hearing arises.

Understand the outcome before paying for assistance. Applying for a certificate does not clear a record, erase all copies or guarantee Board or court approval. Sealing restricts public access rather than destroying the record; authorized law-enforcement and other legally permitted access can remain. Expungement and sealing are different remedies, and the eventual order determines the records and relief covered.

Records and personal statements

Obtain the Illinois State Police statewide criminal-history transcript through Access and Review by supplying fingerprints and identifying information at a law-enforcement/correctional facility or licensed fingerprint vendor. The held ISP schedule makes Access and Review free; vendor or local costs may differ. If there were Chicago arrests, obtain the Chicago Police Department RAP sheet, for which a local fee may apply. Obtain certified dispositions from each relevant circuit clerk and reconcile case numbers, charges, arrest dates and outcomes.

Use the actual conviction, aliases, sentence, discharge and appeal records. Include every relevant conviction from the information or indictment and all non-traffic nonconviction incidents asked about in the application. Add typewritten pages for additional incidents or a longer factual account, retaining each case and its complete facts. Never shorten a person's name or remove a charge to fit a field.

The attached personal-history and reasons statements contain participant-provided words. Review them for accuracy. The history must address date/place of birth, education, employment, marital status, children, residences and lengths of residence, occupation in each place, substance-abuse and mental-health information, military record and community activities. Describe the offense dates, places and circumstances in your own words and explain why you want this certificate.

Obtain supporting educational diplomas/transcripts and five years of employment records, such as W-2s, pay stubs or employer letters. Provide proof of completed counseling where applicable, current child support if applicable, DD-214 and military/tour records for the military branch, and available awards, certificates, recommendation or character letters. Follow Guidelines paragraph B-5 for fingerprint-based criminal-history timing. The packet does not create any of these external records.

No petition will be accepted for review within four years of a prior petition denial for the same individual unless the Chairman permits an exception for compelling reasons. Check the actual denial date and obtain the Chairman permission for any claimed exception. Original signatures and notarization are required. Do not sign the application oath until before a notary. Personally sign the acknowledgement; the witness/attorney supplies their own name, signature and date. Initials, all signing dates and notary controls stay blank during preparation. Read the perjury declaration; false statements can carry criminal penalties.

Delivery, timing and later court stage

Type the application. Mail or deliver the original to Illinois Prisoner Review Board, 1001 North Walnut Street, Springfield, IL 62702. No faxes are accepted. Staple or clip pages so they can be separated; do not bind them or use plastic sleeves. The adopted Guidelines require receipt at least 75 days before the first hearing date on the docket. Confirm the actual docket and delivery requirements with the Board.

Send a copy to the sentencing judge, or the chief judge if the sentencing judge is no longer on the bench, and to the current State's Attorney for the county of conviction. Include proof of delivery to the Board, such as a notarized affidavit or registered/certified-mail receipts. These Board-stage participant deliveries are different from court-stage clerk service. Do not certify a delivery that has not occurred.

The Board may ask you to attend at a scheduled date, time and location in Springfield or Chicago. The selected location is your preference, not a scheduled hearing. No more than two people may speak in a personal presentation. Obtain legal help if a hearing or advocacy is needed. The Board otherwise reviews the application and notifies the participant by mail.

Only after the Board issues the applicable certificate may you proceed to the circuit court of conviction: its Chief Judge, a designated judge, or in counties under 3,000,000 inhabitants the presiding trial judge. Attach the issued certificate to the statewide Request and complete every required companion, including the separate Case List. A PRB application or a certificate request receipt is not an issued certificate.

For the court stage, ask the circuit clerk for the actual county fee, filing method, copy count and self-represented e-filing exemption process. The held ISP fee schedule states no fee to file a petition and \$60 to process a court order; these are different events, and the county collects the applicable total. No statewide county total is quoted here. If unable to pay, use the Supreme Court Rule 298 Application for Waiver of Court Fees and obtain the waiver order. Under section 5.2(d)(4), the circuit clerk performs court-stage service; do not treat Board-stage delivery instructions as court-stage personal service.

These are synthetic diagnostic fixtures for independent review. For actual preparation, verify every supplied fact and external record; leave signature, witness, notary and agency-only controls to the person who must complete them.